



Delaware County Drainage Board, April 8th, 2026

Meeting Metadata	Details
Video Recording	https://www.youtube.com/watch?v=lwF3WzBuxpc
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Delaware County Drainage Board Meeting Summary

Meeting Date: April (Regular Monthly Meeting)

1. Meeting Identification & Attendance

- **Call to Order & Spoken Details:** The meeting of the Delaware County Drainage Board was called to order by the presiding officer, opening with the Pledge of Allegiance [00:00:05](#).
- **Attendance:**
 - **Members Present:** Mr. Hamilton, Mr. Wigan (or Whigam), Mr. Christie, Mr. Ba (or B.), Mr. Borchers, and Mr. Whitehead. (Note: Transcript captures roll call responses including Mr. Whitehead, Mr. Hamilton, Commissioner/Mr. Christine, and Mr. Borchers).
 - **Presiding Officer / Officials:** Board Attorney, County Surveyor, and Commissioners present as noted in discussions.

2. Preliminary & Procedural Business

- **Ceremonial Openings:** Recitation of the Pledge of Allegiance led by the presiding officer [00:00:05](#).
- **Approval of Minutes:** The minutes of the March 11th meeting were presented for review.

- **Action & Vote Disposition:** Approved by roll call vote (Yes votes recorded for Mr. Whitehead, Mr. Hamilton, Commissioner, Mr. Christine, and Mr. Borchers) 00:00:37<U+2013>00:00:55.
 - **Tabled Business:** County Surveyor reported having no tabled business at this time 00:00:56<U+2013>00:01:00.
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3. Open Public Comment / Citizen Forum

- **00:01:23 Chandler Hail (4091 South 900 West):**
 - **Concerns:** Addressed severe standing water issues in his front yard following recent property development and a pond installation north of his property. Stated that an 18-inch field tile was cut/replaced with a smaller tile and a concrete elbow/ditch reconfiguration was installed, forcing water onto neighboring land and causing persistent flooding and saturated ground on his property since last spring.
 - **Board/Staff Response:** The Surveyor noted no regulated drain is present within 1,500 feet, limiting county intervention on private tiles. The Board Attorney noted Indiana's "common enemy" doctrine regarding surface water, but advised checking road cut permits with the highway department and investigating the private tile.
 - **00:12:30 Mark Weisz (1208 North Country Club Road):**
 - **Concerns:** A disabled veteran reporting severe residential flooding (8 to 10 inches of standing water from garage to backyard) after the municipal sanitary district disconnected his yard drain during infrastructure work approximately 30 years ago. Stated his house has sunk considerably and he cannot complete a \$13,000 fence installation.
 - **Board/Staff Response:** The Surveyor noted the property lies between regulated drains with no nearby county tile. The Board agreed to follow up with the county highway department and examine historical sanitary district work.
 - **00:17:39 Chad Thornberg (Delaware Township Deputy Trustee):**
 - **Concerns:** Spoke on behalf of the John family south of Daleville regarding a levy built in connection with a newly installed pond that blocks water flow, forcing residents to run sump pumps every 24 hours. Criticized the application of the common enemy doctrine and inquired about the status of the county's pond ordinance.
 - **Board/Staff Response:** The Board clarified that the planning commission handles pond ordinances, that such ordinances are not retroactive, and that the drainage board lacks jurisdiction over non-channelized, distributed surface water flow disputes.
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4. Substantive Business & Board Action

- **00:22:45 A. McConnell Reconstruction Project (Revised Report):**
 - **Sponsor / Presenter:** County Surveyor & Board Attorney.
 - **Deliberation Summary:** Presented a revised engineering report from Banning showing reduced total costs, making the project more economical. The Board agreed to review the document and hold an open house for petitioning landowners at the next monthly meeting before scheduling a future public hearing.
 - **Action & Vote Disposition:** Motion to table the report until the next meeting passed by roll call vote [00:25:09](#)<U+2013>[00:25:24](#).
- **00:25:26 700 West Reconstruction Project (Lock Mueller Engineering):**
 - **Sponsor / Presenter:** County Surveyor.
 - **Deliberation Summary:** Discussed a field walkthrough with Lock Mueller engineers and landowners. Identified an undersized 48-inch culvert (draining ~1.5 square miles) that causes heavy flooding during storms. Engineers recommended upsizing to a 19x4 culvert, adding a 30-inch culvert further north, and enlarging the adjacent open ditch. A preliminary design is expected by the May meeting, followed by a landowner open house in June.
 - **Action & Vote Disposition Information-only update; no formal vote taken.**
- **00:27:28 Grant County / Delaware County Inter-County Ditch Maintenance:**
 - **Sponsor / Presenter:** County Surveyor.
 - **Deliberation Summary:** Grant County requested maintenance (debrushing and dipping) on a ditch where 15 acres of an 80-acre parcel reside within Delaware County. Grant County proposed raising assessments on those 15 acres tenfold for four years (from ~\$15 to ~\$150/year) and handling all landowner notifications. The Surveyor recommended waving Delaware County's rights to Grant County rather than forming a joint drainage board for only 15 acres.
 - **Action & Vote Disposition:** Motion to waive Delaware County's rights to Grant County for the 15-acre portion approved by roll call vote [00:30:09](#)<U+2013>[00:30:26](#). The Surveyor will notify the landowner by letter.
- **00:31:01 Old Business: Paint Shoemaker Project Update:**
 - **Sponsor / Presenter:** County Surveyor.
 - **Deliberation Summary:** Reported that Abrite was awarded the installation (under the \$10,000 threshold) for 1,300<U+2013>1,400 feet of tile. The tile is fully installed, flowing properly, and operational, with only final clean-up or hookups remaining.
 - **Action & Vote Disposition:** Informational update; no vote required.
- **00:36:39 Legal Services Contract Approval:**
 - **Sponsor / Presenter:** Board Attorney.
 - **Deliberation Summary:** Presented the standard annual professional services contract for the Board Attorney, shifting attorney fees from personnel to contractual services (identical to the commissioners' contract).

- **Action & Vote Disposition:** Motion to approve the contract approved by roll call vote 00:39:21<U+2013>00:39:35.
- **00:39:38 Maintenance Claims:**
 - **Sponsor / Presenter:** Board / Surveyor.
 - **Deliberation Summary:** Reviewed routine maintenance claims. A correction was requested by the Board to reassign a Lawn Wright claim near Kalen Road and 400 South from the "No Name Creek" watershed to the "Abe McConnell" watershed to ensure proper accounting during reconstruction.
 - **Action & Vote Disposition:** Motion to approve maintenance claims (with the specified watershed correction) approved by roll call vote 00:40:15<U+2013>00:40:28.
- **00:59:02 Financial Advisor Engagement for Rate Increases:**
 - **Sponsor / Presenter:** Board Attorney.
 - **Deliberation Summary:** Discussed the need to evaluate watershed maintenance assessment rates<U+2014>which have not been raised since the early 1980s<U+2014>and recommended hiring OW Cronin and Associates (Buzz Cronin) as a financial advisor for the drainage board (and potentially stormwater) due to competitive rates and municipal drainage expertise.
 - **Action & Vote Disposition:** Motion to explore hiring OW Cronin and Associates to support the financial needs of the drainage board approved by roll call vote 00:01:27<U+2013>00:01:45.

5. Administrative Updates & Adjournment

- **Debrushing Operations Update (00:32:38):**
 - The Surveyor inspected three active debrushing contractors:
 1. *No Name Creek (Banning reconstruction area):* Progressing well with 5<U+2013>6 crew members completing sections between 400 South.
 2. *JJC (North of Tilton):* Debrushing complete; staging brush piles for burning as weather permits.
 3. *Schneider (North of Gaston):* Approximately halfway finished.
 - Future debrushing plans include moving westward toward Nebo Road and targeting No Name Creek from Center Road to 500 South to alleviate localized flow restrictions reported near Liftoff.
- **Cornerstone Perpetuation Update (00:42:06):**
 - The Surveyor provided an administrative overview of the Cornerstone Perpetuation Fund (funded via a percentage of recorder office records). Confirmed that Ashton's is under contract to locate, establish, and reference the mandated 5% of county cornerstones annually, aiming to fully update office books and GIS records by the end of the year.
- **Adjournment:**

- **Action & Vote Disposition:** Hearing no further business, a motion to adjourn was offered, seconded, and approved by voice vote [01:01:40](#).

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